

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Idan Falek	Team: Squad #10	CCRB Case #: 202302804	☐ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 04/03/2023 5:30 PM, Thursday, 10/05/2023 9:27 AM	Location of Incident: 44th Precinct stationhouse; 100 Church Street	18 Mo. SOL 10/3/2024	Precinct: 44		
Date/Time CV Reported Mon, 04/03/2023 6:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 04/03/2023 6:05 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Todd Jacoby	31546	932819	044 PCT
2. SGT Nicholas Torrasi	02011	956304	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michelle Brady	10934	964373	044 PCT
2. PO Karolin Abreugarcia	22106	968911	044 PCT
3. PO Michael Meneses	11225	964654	044 DET
4. DTS Melissa Negron	05023	940980	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Todd Jacoby	Discourtesy: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby spoke discourteously to § 87(2)(b)	
B . PO Todd Jacoby	Off. Language: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby spoke offensively regarding § 87(2)(b) actual or perceived disability.	
C . PO Todd Jacoby	Abuse: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby improperly used his body-worn camera.	
D . PO Todd Jacoby	Discourtesy: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby spoke discourteously to § 87(2)(b)	
E . SGT Nicholas Torrasi	Discourtesy: On April 03, 2023, at the 44th Precinct stationhouse, Sergeant Nicholas Torrasi spoke discourteously to § 87(2)(b)	
F . SGT Nicholas Torrasi	Abuse: On April 03, 2023, at the 44th Precinct stationhouse, Sergeant Nicholas Torrasi improperly used his body-worn camera.	
G . SGT Nicholas Torrasi	Abuse: On April 03, 2023, at the 44th Precinct stationhouse, Sergeant Nicholas Torrasi did not process § 87(2)(b) complaint regarding an officer.	

Officer(s)	Allegation	Investigator Recommendation
H . SGT Nicholas Torrisi	Untruthful Stmt.: On October 05, 2023, at 100 Church Street in Manhattan, Sergeant Nicholas Torrisi provided a false official statement to the CCRB.	

Case Summary

On April 3, 2023, § 87(2)(b) filed this complaint with the CCRB online.

On April 3, 2023, at approximately 5:30 p.m., § 87(2)(b) went to the 44th Precinct stationhouse in the Bronx, where Police Officer Todd Jacoby, of the 44th Precinct, allegedly spoke discourteously and used offensive language toward § 87(2)(b) regarding their hearing disability (**Allegation A: Discourtesy – Word, § 87(2)(g)**) (**Allegation B: Offensive Language – Disability, § 87(2)(g)**) PO Jacoby improperly used his body-worn camera (**Allegation C: Abuse of Authority – Improper Use of Body-Worn Camera, § 87(2)(g)**) § 87(2)(b) witnessed PO Jacoby allegedly use profanity towards § 87(2)(b) (**Allegation D: Discourteous – Word, § 87(2)(g)**) Sergeant Nicholas Torrisi, of the 44th Precinct, yelled “stop fucking yelling” to § 87(2)(b) (**Allegation E: Discourtesy – Word, § 87(2)(g)**) and improperly used his body-worn camera (**Allegation F: Abuse of Authority – Improper Use of Body-Worn Camera, § 87(2)(g)**) Sgt. Torrisi then allegedly refused to process § 87(2)(b) civilian complaint (**Allegation G: Abuse of Authority – Refusal to Process Civilian Complaint, § 87(2)(g)**)

Police Officer Michelle Brady, Detective Melissa Negrón, Police Officer Karolin Abreguarcia, Police Officer Luis Vasquezadames, Police Officer Travis Andreu, Police Officer Jennifer Martinez, Police Officer Michael Rodriguez, Police Officer Patrick Cordones, and Police Officer Darwin Delacruz, all of the 44th Precinct, were also present, along with Police Officer Michael Meneses, of the 44th Detective Squad.

On October 5, 2023, at approximately 9:27 a.m., at 100 Church Street in Manhattan, Sgt. Torrisi provided a false official statement during his CCRB interview (**Allegation H: Untruthful Statement – False Official Statement, § 87(2)(g)**)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation obtained BWC footage from Sgt. Torrisi, PO Abreguarcia, PO Vasquezadames, PO Andreu, PO Martinez, PO Rodriguez, PO Cordones, and PO Delacruz (**BR 01, BR 02, BR 03, BR 04, BR 05, BR 06, BR 07, BR 08, BR 09**). The investigation received stationhouse footage (**BR 10, BR 11, BR 12, BR 13, BR 14, BR 15, BR 16, BR 17**).

Findings and Recommendations

Allegation (A) Discourtesy: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby spoke discourteously to § 87(2)(b)

Allegation (B) Offensive Language: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby spoke offensively regarding § 87(2)(b) actual or perceived disability.

Allegation (C) Abuse of Authority: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby improperly used his body-worn camera.

§ 87(2)(b) consistently stated (**BR 18, BR 19**) stated that they went to the 44th Precinct stationhouse to file a complaint about officers and to report an incident of harassment against their roommate. § 87(2)(b) walked into the stationhouse wearing headphones. When PO Brady approached them, § 87(2)(b) asked to speak to a sergeant. Before PO Brady responded to § 87(2)(b) PO Jacoby shouted from behind a desk to the left, “I’ll be the judge of that. I’ll determine that,” referencing whether or not they needed to speak with a sergeant. § 87(2)(b) responded to PO Jacoby, “You don’t need to yell at me from across the room. I’m hard of hearing. It’s easier if you come closer so I can read your lips.” Once § 87(2)(b) told PO Jacoby they were hard of hearing, his speech pattern changed. He spoke to § 87(2)(b) by pausing between each word, over-enunciating each word, and shouting. This continued throughout the rest of their interaction. § 87(2)(b) felt that the way PO Jacoby spoke to them was ableist because it was as if they could not understand him. An example of this speech pattern was demonstrated by § 87(2)(b) in their statement (**BR 18**) from 17:53 to 18:00 and 19:12 to 19:20.

PO Jacoby then approached § 87(2)(b) yelled louder, and shouted in § 87(2)(b) face

asking why they came to the stationhouse and why they needed to speak to a sergeant. § 87(2)(b) responded that they felt more comfortable speaking to a sergeant because it was delicate matter and that they did not feel comfortable speaking to PO Jacoby because he was yelling. PO Jacoby asked what § 87(2)(b) needed because he would need to relay this to his sergeant. § 87(2)(b) asked him to stop yelling, but PO Jacoby only yelled louder. PO Jacoby then shouted, "It can't be that delicate. What do you need?" § 87(2)(b) explained that they were there to report officer misconduct and harassment regarding their roommate. PO Jacoby continued to shout at § 87(2)(b) and they asked PO Jacoby again, for the sixth or seventh time, to not shout at them. PO Jacoby then shouted at § 87(2)(b) to have a seat, so § 87(2)(b) complied.

When § 87(2)(b) sat down, they took the headphones out of their ear and turned their phone on silent. PO Jacoby then leaned over the gated barrier, approximately one foot away from § 87(2)(b) face, and yelled, "You cannot use your cellphone in here. Turn the cellphone off. You have to turn it off." § 87(2)(b) responded that he was making them uncomfortable and to back up and stop yelling at them. § 87(2)(b) put their phone in their purse, and PO Jacoby walked away. While waiting to speak to a supervisor, PO Jacoby interacted with other civilians. He did not yell at the other civilians and did not speak to them with the same speech pattern he had used with § 87(2)(b).

Stationhouse footage (BR 10, BR 11) is consistent with § 87(2)(b) statement. At 25:45 of the stationhouse footage (BR 10), § 87(2)(b) walks into the stationhouse. At 28:50, PO Brady speaks with § 87(2)(b). At 29:54, § 87(2)(b) gets the attention of PO Jacoby as he is walking by. PO Jacoby approaches them as § 87(2)(b) points at their head. At 30:18, § 87(2)(b) points towards the desk. At 30:40, PO Jacoby walks outside the stationhouse and returns. At 30:50, PO Jacoby points at § 87(2)(b) as he walks through the entrance way. He then leans over a metal barrier dividing the entrance way and says something to them. § 87(2)(b) responds by shaking their head and moving their right hand palm facing the ground back and forth.

The request for BWC yielded negative results for PO Jacoby when interacting with § 87(2)(b).

PO Jacoby (BR 21) noted that he had no independent recollection of this incident and his statement was based upon a review of the stationhouse footage. PO Jacoby did not recall what § 87(2)(b) needed assistance with or if he said anything to § 87(2)(b) before approaching. PO Jacoby did not recall what they discussed. PO Jacoby did not recall if § 87(2)(b) said they were hard of hearing but assumed they had based on the video and allegations. PO Jacoby assumed that he leaned in and spoke to § 87(2)(b) at a louder volume so that they could hear him, but he did not recall what they spoke about. PO Jacoby did not recall altering his speech patterns when speaking with § 87(2)(b) or speaking in a manner that was mocking in nature. PO Jacoby did not recall if § 87(2)(b) asked him to stop yelling or told him they were uncomfortable.

PO Jacoby did not recall if he was equipped with a BWC. He did not activate his BWC because he did not take police action. PO Jacoby did not recall § 87(2)(b) demeanor. Based on the video, the interaction may have been contentious because when he leaned into to speak to § 87(2)(b) they did not look happy based on their facial expressions. Nothing else indicated to him that § 87(2)(b) was unhappy.

Sgt. Torrisi (BR 22) stated that when PO Jacoby spoke with § 87(2)(b) said multiple times that they could not hear, so PO Jacoby yelled when speaking with them. § 87(2)(b) was speaking in a normal tone of voice. Sgt. Torrisi did not recall anything PO Jacoby or § 87(2)(b) said. Sgt. Torrisi did not know why § 87(2)(b) could not hear PO Jacoby; however, there was a train that went above the precinct that sometimes made it difficult to hear. He did not observe PO Jacoby speak in manner that was mocking in nature with § 87(2)(b) or make any other changes in his speech aside from yelling.

Det. Negron and PO Meneses stated (BR 34, BR 35) that they had no independent recollection of the incident or § 87(2)(b).

NYPD Patrol Guide Procedure 200-02 (BR 23) states that members of service are

instructed to treat citizens with courtesy and professionalism, and that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy.

NYPD Administrative Code 304-06 (BR 30) details members of service's prohibited conduct while on duty and expressly forbids officers from using discourteous language or making disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

NYPD Patrol Guide Procedure 212-123 (BR 31) states mandatory activation of BWC for all uniformed members of the service prior to engaging in any police action and record any interactions that escalate to become adversarial or may hold evidentiary value.

PO Jacoby did not independently recollect the incident and his testimony was based on assumptions from the stationhouse footage and allegations. Sgt. Torrisi testified that § 87(2)(b) said they could not hear PO Jacoby, so PO Jacoby yelled when speaking with them. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (D) Discourtesy: On April 03, 2023, at the 44th Precinct stationhouse, Police Officer Todd Jacoby spoke discourteously to § 87(2)(b)

Allegation (E) Discourtesy: On April 03, 2023, at the 44th Precinct stationhouse, Sergeant Nicholas Torrisi spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated (BR 18) that while they were waiting to speak with Sgt. Torrisi, they witnessed an arrested male, § 87(2)(b) enter the stationhouse with officers. As officers processed him at the desk, PO Jacoby told him to "shut the fuck up." Other officers also used profanity towards § 87(2)(b) but § 87(2)(b) did not recall which officers or any specific statements. § 87(2)(b) and § 87(2)(b) did not provide statements to the investigation.

In PO Rodriguez's BWC (BR 07), at 25:00, § 87(2)(b) and PO Abreugarcia argue about his pedigree information while he is being processed at the desk. They continue to argue about the legality of his arrest. At 25:47 Sgt. Torrisi tells § 87(2)(b) "How is this a false arrest? Stop fucking yelling," from behind the desk. BWC does not capture PO Jacoby using profanity.

PO Jacoby testified (BR 21) that he had no independent recollection of the incident involving § 87(2)(b). He did not recall why § 87(2)(b) was under arrest, what any officers said to him or any commands issued. PO Jacoby did not recall if he spoke to § 87(2)(b). Watching stationhouse footage did not refresh PO Jacoby's independent recollection. PO Jacoby did not recall telling § 87(2)(b) to "shut the fuck up" and had no recollection of using any profanity. PO Jacoby did not recall if any officer used profanity with § 87(2)(b).

Sgt. Torrisi testified (BR 22) that he did not recall if he said anything to § 87(2)(b). PO Rodriguez's BWC (BR 07) was played from 25:37 to 26:01 six times. Sgt. Torrisi did not hear himself say, "Stop fucking yelling." Sgt. Torrisi heard himself yelling, "stop yelling," although later he stated he was unsure what he said because § 87(2)(b) was yelling. He did not use any profanity with § 87(2)(b) that he could recall. It was not a stressful situation, but it was potentially dangerous because § 87(2)(b) did not identify himself, so his criminal history was unknown. Sgt. Torrisi was concerned that § 87(2)(b) was a flight risk, so he came out from the desk to put leg shackles on § 87(2)(b). Sgt. Torrisi was also concerned about § 87(2)(b) being violent once his handcuffs came off. § 87(2)(b) was handcuffed the entire time he was standing in front of the desk. His noncompliance

was verbal, not physical. There were no other safety concerns.

NYPD Patrol Guide Procedure 200-02 (BR 23) states that members of service are instructed to treat citizens with courtesy and professionalism, and that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy.

DAO-DCT 2015-15012 (BR 32) found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle.

Based on comprehensive BWC, PO Jacoby did not tell § 87(2)(b) to “shut the fuck up” or use any profanity with him. § 87(2)(g)

§ 87(2)(g)

Allegation (F) Abuse of Authority: On April 03, 2023, at the 44th Precinct stationhouse, Sergeant Nicholas Torrissi improperly used his body-worn camera.

The request for BWC yielded negative results for Sgt. Torrissi when interacting with § 87(2)(b)

In PO Rodriguez’s BWC (BR 07), at 25:24, PO Abreugarcia and § 87(2)(b) yell back and forth about him being falsely arrested and refusing to provide his identification card. At 25:47, Sgt. Torrissi tells § 87(2)(b) “Stop fucking yelling,” from behind the desk. At 25:50, PO Abreugarcia approaches closer to § 87(2)(b) and moves her right hand back and forth between her person and § 87(2)(b) as she yells, “I’m in front of you. Why are you yelling?” At 26:01, Sgt. Torrissi comes from behind the desk and asks § 87(2)(b) if he is going to provide his name.

Sgt. Torrissi testified (BR 22) that he did not activate his BWC during his interaction with § 87(2)(b) because his BWC was charging. He is procedurally supposed to activate his BWC when someone is processed at the desk. Since it was charging and he had an administrative assignment, he was required to make an entry in the command log. He did not recall if he documented it in the command log.

§ 87(2)(b) demeanor was belligerent, agitated, disruptive, aggressive, and he was yelling. He talked over the officers and did not let them speak. PO Abreugarcia and § 87(2)(b) went back and forth, as they were both yelling at one another. Sgt. Torrissi did not think it was a contentious situation.

The command log (BR 24) and Sgt. Torrissi’s memo book (BR 26) do not include any entries about his BWC charging during his tour.

NYPD Patrol Guide Procedure 212-123 (BR 31) states mandatory activation of BWC for all uniformed members of the service prior to engaging in any police action and record any interactions that escalate to become adversarial or may hold evidentiary value. Uniformed members of the service are required to notify the desk officer if BWC is not functioning properly, becomes damaged or is otherwise unaccounted for at any point during tour and document notification in digital activity log.

It is undisputed that Sgt. Torrissi did not activate his BWC when interacting with § 87(2)(b). Although he testified that it was charging, he did not make any command logs or memo book entries to indicate as such. § 87(2)(g)

Allegation (G) Abuse of Authority: On April 03, 2023, at the 44th Precinct stationhouse, Sergeant Nicholas Torrasi did not process § 87(2)(b) complaint regarding an officer.

§ 87(2)(b) stated (BR 18) that Sgt. Torrasi spoke with them in front of the stationhouse entrance an hour and half after they arrived. § 87(2)(b) explained that they wanted to report an officer and an incident of harassment with their roommate. Sgt. Torrasi explained that he could only handle cases related to his command and could not assist with issues that occurred in the 50th Precinct. § 87(2)(b) then asked for his and PO Jacoby's business cards, which he provided. § 87(2)(b) left without filing a complaint about PO Perry. Sgt. Torrasi did not offer to file a report on PO Perry and did not provide options on how to file a report against PO Perry.

In Sgt. Torrasi's BWC (BR 01) at 3:05, after § 87(2)(b) describes an incident that occurred at their apartment in the 50th Precinct and explains they were directed by a county clerk in housing court to request that an officer to escort them home, § 87(2)(b) says, "I would like to report PO Perry for trying to dissuade me from calling 911 because I don't think that's fair." Sgt. Torrasi responds that he cannot have an officer from his command escort them because it is outside the borders of the precinct. At 4:04, § 87(2)(b) requests PO Jacoby's shield number because he was "incredibly rude and ableist to me." At 5:04, Sgt. Torrasi confirms that he will provide his and PO Jacoby's business card and asks § 87(2)(b) if there is anything else they need. They confirm that is all.

Sgt. Torrasi testified (BR 22) that § 87(2)(b) asked to file a report about officers. Sgt. Torrasi followed up twice asking if they needed anything else but § 87(2)(b) did not ask to file a complaint again. Sgt. Torrasi never offered to file a complaint or give them options about how to file the complaint.

NYPD Patrol Guide procedure 207-28 (BR 36) states that when civilians who wish to file a complaint in person, officers must interview the complainant, provide the civilian with a civilian complaint report, and assist or allow another person to assist the complainant with completing the report. Officers must also prepare a civilian complaint report and inform the Civilian Complaint Review Board

It is undisputed that § 87(2)(b) asked to report PO Perry and a civilian complaint was not prepared. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (H) Untruthful Statement: On October 05, 2023, at 100 Church Street in Manhattan, Sergeant Nicholas Torrasi provided a false official statement to the CCRB.

Sgt. Torrasi initially testified (BR 22) that he did not hear himself say, "Stop fucking yelling" after he reviewed PO Rodriguez's BWC (BR 07). After viewing the BWC a second time, he testified that he did not hear anything. The third time he reviewed the BWC, he said that he heard himself yelling, "stop yelling," but not, "stop fucking yelling." He did not recall using any profanity with § 87(2)(b). The BWC was played a fourth and fifth time, after which Sgt. Torrasi testified that he heard himself speak but he was unsure what he said because § 87(2)(b) was yelling, although it sounded like "stop yelling." After the BWC was played a sixth time, he testified that he heard the same thing.

NYPD Administrative Guide 304-10 (BR 33) defines a false statement as an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation. A material fact is defined as a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. Officers

are prohibited from making false official statements.

Sgt. Torrisi testified that he did not use any profanity with § 87(2)(b) that he could recall and that he may have said “stop yelling,” but he did not hear himself saying “stop fucking yelling.” Upon reviewing the BWC multiple times, Sgt. Torrisi did not amend his statement despite being provided multiple opportunities to do so. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- § 87(2)(b)
- PO Jacoby has been a member of service for 20 years and has been a subject in 11 CCRB complaints and 28 allegations, of which four were substantiated.:
 - 200604502 involved substantiated allegations of premises entered and/or searched against PO Jacoby. The Board recommended Command Discipline and the NYPD imposed Command Discipline A.
 - 201809935 involved substantiated allegations of interference with recording, refusal to process civilian complaint, and threat of arrest against PO Jacoby. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B. § 87(2)(g)
- Sgt. Torrisi has been a member of service for nine years and has been a subject in four CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 1, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 28).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- The RPBP Unit reviewed this complaint and ultimately decided it did not contain actionable allegations of Racial Profiling or Bias-Based Policing.

Squad: 10

Investigator:	Idan Falek	Inv. Falek	05/03/2024
	Signature	Print Title & Name	Date

Squad Leader:	Maura R. Roche	IM Maura R. Roche	05/07/2024
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Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date